NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT 1)
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF CHENNAI BENCH, NATIONAL COMPANY LAW TRIBUNAL HELD ON 29.01.2021 at 02.15 P.M. THROUGH VIDEO CONFERENCING.

PRESENT : SHRI R. VARADHARAJAN MEMBER – JUDICIAL
SHRI ANIL KUMAR B. MEMBER - TECHNICAL

APPLICATION NUMBER	:	CP/100 & 101/CAA/2020
PETITION NUMBER	:	CA/922/CAA/2020
NAME OF THE PETITIONER(S)	:	Harita Sheela Pvt Ltd
NAME OF THE RESPONDENT(S)	:	Harita Traders and Services Pvt Ltd
UNDER SECTION	:	Sec.230-232 of CA 2013

ORDER

Mr. P.H.Arvindh Pandian, Senior Advocate on behalf of Mr. Pawan Jhabakh, Advocate for the Petitioner Companies is present through Video Conferencing Platform.

Heard the submissions of the Ld. Senior Advocate for the Petitioner Companies in relation to the Company Petition. Report of the RD has been filed.

Ld. Senior Advocate for the Petitioner Companies represents in relation to the observation made in clause (9) of the RD's report an undertaking has been given that all compliances as are necessary under the provisions of the Companies Act, 2013 will be duly done and that the same has been reflected in the Affidavit which has been given by the Petitioner Companies before this Tribunal.

In relation to OL, AR Mr. Palani is present in person before this Tribunal and represents that the OL does not have any objection in relation to the sanction of the Scheme by this Tribunal. The report of the OL has also been duly filed before this Tribunal along with the report of the Chartered Accountant engaged by the OL to do the necessary inspection for a period of three years of the Transferor

Companies proposed to be dissolved without winding up. The fee for the Auditor is also sought for by the AR for the OL.

During the course of the submissions made by the Ld. Senior Advocate for the Petitioner Companies, it is gathered that the Petitioner Companies till 2018 was engaged in the Non-Banking Finance Business and the certificate of the registration was cancelled by the Reserve Bank of India. A query was posed by this Tribunal as to whether any deposit has been collected from public by the said Companies. Ld. Senior Advocate for the Petitioner Companies points out to the certificate issued by the Chartered Accountant that there are no creditors in relation to the Petitioner Companies which according to Ld. Senior Advocate for the Petitioner Companies also includes the deposits and the statement of the Ld. Senior Advocate for the Petitioner Companies is taken on record. Let the Affidavit as obtained from the Petitioner Companies be also duly filed before this Tribunal within two (2) days from today in this regard. However, order stands **reserved** subject to the above compliance.

-SD-
(ANIL KUMAR B)
MEMBER (TECHNICAL)

-SD-
(R.VARADHARAJAN)
MEMBER (JUDICIAL)

MEMBER (TECHNICAL)

MEMBER (JUDICIAL)

MS